

		The Court further notes that it appears that Defendant has not been represented by counsel for over a year. A corporation must be represented by an attorney and cannot represent itself. <i>Gutierrez v. G&M Oil Co., Inc.</i>, 184 Cal. App. 4th 551, 564 (2010). “[I]t is more appropriate and just to treat a corporation’s failure to be represented by an attorney as a defect that may be corrected, and on such terms as are just in the sound discretion of the court.” <i>CLD Construction, Inc. v. City of San Ramon</i>, 120 Cal. App. 4th 1141, 1149 (2004). “[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.” <i>Id.</i> at 1150. The Court sets an OSC re: Status of Representation of Corporate Defendant for October 27, 2023 at 9:00 a.m. Plaintiff to give notice.
12	O’Kane vs. Radovich 2022-01276312	Motion to Compel Deposition (Oral or Written) filed by Kevin O’Kane on 8/25/23 Plaintiff Kevin O’Kane will and hereby does, move to Compel the deposition of Defendant Chaslav Radovich. Plaintiff requests sanctions in an amount no less than \$6,900 from Mr. Radovich, which request is made pursuant to California Code of Civil Procedure §§ 2023.010(d) (Failing to respond to submit to an authorized method of discovery), 2023.030(a) (monetary sanction is available for discovery misconduct), and 2025.450(g)(1) (failure to comply with deposition notice).

Here, Mr. Radovich agreed to sit for deposition on August 24, 2023, and MP served the Third Amended Notice on August 8, 2023 to secure that date. George Decl., ¶ 6. On August 21, 2023, three days before Mr. Radovich's scheduled deposition, counsel for MP received an email from Mr. Radovich's attorney, Michael Hensley, stating that Mr. Radovich would not appear. *Id.* ¶ 7. On that same date counsel emailed back and forth inquiring about the cancellation. *See* August 21 emails attached to George Decl.

Given the multiple attempts to obtain the 8/24 deposition date and Defendant's unilateral cancelling of the deposition without providing any alternative dates, granting the motion was warranted, *as well as sanctions*. The *untimely* opposition was not considered.

Subsequent to the instant motion being filed, however, the Court notes that the deposition in this dispute has been conducted on September 11, 2023, with a second session set for September 26.

Accordingly, the motion to compel deposition is **DENIED AS MOOT**.

The Court **GRANTS** sanctions and will order sanctions against Mr. Radovich in the amount of \$1,560 to be paid within 30 calendar days of notice of this ruling to Moving Party. Code Civ. Proc. § 2025.450.

Moving Party to give notice.